

**CHAPTER xvi**

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity known as Jesus Hospital, at Rothwell, in the County of Northampton. [14th May 1959.]

WHEREAS the Charity Commissioners in their Report to Her Majesty of their proceedings during the year one thousand nine hundred and fifty-eight reported that they had approved and certified a Scheme for the application or management of the Charity known as Jesus Hospital, at Rothwell, in the County of Northampton:

And whereas it is expedient that the Scheme as the same is fully set out and defined in the Schedule to this Act should be confirmed:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The said Scheme is hereby confirmed: Provided always Confirmation that nothing in this Act or in the said Scheme shall be held to of Scheme. interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as the Jesus Hospital (Rothwell) Short title. Charity Scheme Confirmation Act, 1959.

SCHEDULE

SCHEME FOR THE APPLICATION OR MANAGEMENT OF THE
FOLLOWING CHARITY:—

The Charity known as Jesus Hospital, at Rothwell, in the County of Northampton, regulated by a Charter dated the 29th June 38 Elizabeth I and comprised in a Scheme of the Charity Commissioners of the 23rd May 1865.

1. *Administration of Charity.*—The above-mentioned Charity and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charity shall be administered and managed subject to and in conformity with the provisions of this Scheme under the title of Jesus Hospital, Rothwell, by the body of Governors hereinafter constituted.

DISSOLUTION OF CORPORATION

2. *Dissolution of Corporation.*—The body corporate called The Governors of the Goods, Possessions and Revenues of the Hospital of Jesus in Rothwell in the County of Northampton constituted by virtue of the above-mentioned Charter dated the 29th June 38 Elizabeth I is hereby dissolved.

GOVERNORS

3. *Governors.*—The body of Governors shall consist when complete of five competent persons residing in the County of Northampton.

4. *First Governors.*—The following persons shall be the first Governors and subject to the provisions hereinafter contained for determination of governorship shall be entitled to hold office for life:—

Sir Gyles Isham, of Lamport Hall, Lamport, Baronet,

Sir Edward Geoffrey de Capell Brooke, of Hill House, Woodford, Kettering, Baronet,

Douglas Montague Wood, of Brixworth Manor, Brixworth, Esquire,

Edmund Brudenell, of Deene Park, Corby, Esquire, and

Francis John William West, of 7 Bridge Street, Rothwell, Esquire,
all in the County of Northampton.

5. *Future Governors.*—Every future Governor shall be appointed for a term of five years by a resolution of the Governors passed at a special meeting.

6. *Declaration by Governors.*—No person shall be entitled to act as a Governor whether on a first or on any subsequent entry into office until after signing in the minute book of the Governors a declaration of acceptance and of willingness to act in the trusts of this Scheme.

7. *Determination of governorship.*—Any Governor who ceases to be qualified as aforesaid or who is absent from all meetings of the Governors during a period of two years or who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Governors a wish to resign shall cease thereupon to be a Governor.

8. *Vacancies.*—Upon the occurrence of a vacancy the Governors shall cause a note thereof to be entered in their minute book at their next meeting. Any competent Governor may be re-appointed. No vacancy shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF GOVERNORS

9. *Ordinary meetings.*—The Governors shall hold at least one ordinary meeting in each year.

10. *First meeting.*—The first meeting of the Governors shall be summoned by Robert William Banner Newton, of 43 High Street, Market Harborough, or if he fails for three calendar months after the date of this Scheme to summon a meeting by any two of the Governors.

11. *Chairman.*—The Governors at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Governors present shall choose one of their number to be chairman of the meeting.

12. *Special meetings.*—A special meeting may be summoned at any time by the chairman or any two Governors upon four days' notice being given to all the other Governors of the matters to be discussed. A special meeting may be summoned to take place immediately after an ordinary meeting.

13. *Quorum.*—There shall be a quorum when three Governors are present at a meeting.

14. *Voting.*—Every matter shall be determined by the majority of votes of the Governors present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not voted previously on the same question but no Governor in any other circumstances shall give more than one vote.

15. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Governors. All proper accounts in relation to the Charity shall be made out in each year and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners in compliance with the provisions of the Charitable Trusts Acts.

16. *General power to make regulations.*—Within the limits prescribed by this Scheme the Governors shall have full power from time to time to make regulations for the management of the Charity and for the conduct of their business including the summoning of meetings, the deposit of money at a proper bank and the custody of documents.

17. *Clerk.*—The Governors may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him (not being a Governor) such reasonable salary as they think fit.

MANAGEMENT OF LANDS

18. *Management and letting of lands.*—The Governors shall let and otherwise manage all the lands belonging to the Charity not required to be retained

or occupied for the purposes thereof. Except with the approval of the Charity Commissioners the Governors shall give public notice of the intention to let any land in such manner as they consider most effectual for ensuring full publicity. The Governors shall not create any tenancy in reversion after more than three years of any existing term, or for more than 21 years certain, or for less than the best rent obtainable, without the sanction of the Charity Commissioners or a competent court.

19. *Leases.*—The Governors shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent, the proper cultivation of the land and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

20. *Repair and insurance.*—The Governors shall keep in repair and insure for full value against fire all the buildings of the Charity not required to be kept in repair and insured by the lessees or tenants thereof.

APPLICATION OF INCOME

21. *Expenses of management.*—The Governors shall first defray out of the income of the Charity the cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the Charity and all the proper costs, charges and expenses of and incidental to the administration and management of the Charity.

22. *Extraordinary Repair Fund.*—(1) Subject to any further Order or Orders of the Charity Commissioners a fund for the extraordinary repair, improvement or rebuilding of the almshouses and other property belonging to the Charity shall be provided and maintained as follows.

(2) The Official Trustees of Charitable Funds shall transfer in their books to the credit of an account to be entitled Extraordinary Repair Fund the sums of £221 7s. 3d. 3 per cent. Funding Stock, 1959–69, and £534 11s. 8d. 3 per cent. Savings Bonds, 1955–65, specified in the schedule hereto and a sum of £100 3½ per cent. War Stock part of the sum of £6,051 3s. 6d. like stock specified in the said schedule.

(3) The Governors shall pay a yearly sum of not less than £50 out of the income of the Charity to the said Official Trustees for the credit of the said account.

(4) The said Official Trustees shall invest the income of the above-mentioned sums of stock, the yearly sums so paid and the income of all other the stocks, funds and securities standing to the credit of the said account at compound interest in the purchase in their name to the credit of the said account of one or more of the stocks, funds and securities (other than real securities) authorised by law for the investment of trust funds.

23. *Benefit of almsmen.*—Subject to the payments aforesaid the Governors shall apply the income of the Charity for the benefit of the almsmen of the Charity or any of them in such manner as the Governors think fit from time to time and may apply the said income for the benefit of the wives of almsmen and the widows of deceased almsmen so long as they reside in the almshouses.

ALMSHOUSES AND ALMSPEOPLE

24. *Almshouses.*—The almshouses belonging to the Charity and the property heretofore occupied therewith shall be appropriated and used for the residence of almsmen in conformity with the provisions of this Scheme.

25. *Saving for existing almsmen.*—Appointments of almsmen under this Scheme shall be made without prejudice to the interests of the existing almsmen.

26. *Qualifications of almsmen.*—(1) The almsmen shall be poor men of not less than sixty years of age and of good character who (except in special cases to be approved by the Charity Commissioners) are resident in the County of Northampton at the time of appointment. Preference shall be given to poor men of good character who are resident in the Urban District of Rothwell.

(2) The Governors may permit the wife of any almsman to reside with him in the almshouses.

(3) Upon the death or removal of any almsman the Governors may permit his wife if theretofore residing with him in the almshouses to continue in residence.

27. *Incapacity of almsmen.*—The Governors may provide the almsmen, the wife of an almsman and the widow of a deceased almsman at the cost of the Charity with any necessary attendance in case of serious illness or permanent infirmity.

28. *Notice of vacancy.*—No appointment of an almsman shall be made by the Governors until a sufficient notice of an existing vacancy specifying the qualifications required from candidates has been published in the County of Northampton and in particular in the Urban District of Rothwell by advertisement or otherwise so as to give due publicity to the intended appointment but it shall not be necessary to publish a notice if a vacancy occurs within twelve calendar months after the last notice of a vacancy has been published. Notices may be according to the form annexed hereto.

29. *Applications for appointment.*—All applications for appointment shall be made in writing to the Governors or their clerk in such manner as the Governors direct. Before appointing any applicant to be an almsman the Governors shall require him to attend in person unless he is physically disabled or the Governors are of opinion that special circumstances render this unnecessary. Every applicant must be prepared with sufficient testimonials and other evidence of his qualification for appointment.

30. *Selection of almsmen.*—Almsmen shall be selected only after full investigation of the character and circumstances of the applicants.

31. *Appointments of almsmen.*—Every appointment of an almsman shall be made by the Governors at a special meeting.

32. *Records.*—The Governors shall provide and keep a book in which shall be entered the name, age and description of every person appointed to be an almsman, the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

33. *Absence from almshouses.*—No almsman shall be absent from the almshouses for a period exceeding 24 hours without having first notified the Warden, the Matron, the Clerk of the Governors or one of the Governors. No almsman shall be absent for more than 7 days at any one time or more than 28 days in any one year without the consent of the Governors.

34. *Rooms not to be let.*—No almsman shall be permitted to let or part with the possession of the room or rooms allotted to him or except with the special permission of the Governors to suffer any person to share the occupation of the same or of any part thereof.

35. *Warden and Matron.*—The Governors may appoint a Warden and a Matron dismissible at their pleasure to perform such duties as may be necessary for the superintendence and care of the almsmen at such reasonable salary as the Governors think fit. The Governors may allot to the Warden as a residence while he holds office the house belonging to the Charity and now occupied by the Principal of Jesus Hospital. The Governors may allot to the Matron as a residence while she holds office the house belonging to the Charity and now used as a residence for nurses.

36. *Removal of almsmen.*—(1) The following persons may be removed from being almsmen :—

- (a) Any almsman who in the opinion of the Governors is guilty of insobriety, insubordination, breach of regulations or immoral or improper conduct ;
- (b) Any almsman who in the opinion of the Governors no longer has the required qualifications ;
- (c) Any almsman who has been appointed without having the required qualifications ;
- (d) Any almsman who is suffering from mental or other disease or infirmity rendering him unfit to remain an almsman.

(2) Upon the removal of any almsman, Warden or Matron the Governors shall take possession of the room, rooms or house occupied by him or her.

(3) Any almsman removed under section (1) of this clause on account of mental or other disease or infirmity may be re-appointed on recovery without previous notice being given of the vacancy and need not have the qualification as to residence.

37. *Regulations.*—The Governors may prescribe from time to time such reasonable regulations as they consider expedient for the government of the almshouses and the almsmen but so that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the almsmen shall render such assistance to each other and to the Warden and Matron as is within their power.

GENERAL PROVISIONS

38. *Appropriation of benefits.*—The appropriation of the benefits of the Charity shall be made by the Governors at meetings of their body and not separately by any individual Governor or Governors ; provided that the Governors from time to time may appoint two or more members of their body to be a committee for dealing with any cases of emergency but all acts and proceedings of committees shall be reported in due course to the Governors.

39. *Governors not to be personally interested.*—No Governor shall take or hold any interest in property belonging to the Charity otherwise than as a Governor for the purposes thereof and no Governor shall receive remuneration, or be interested in the supply of work or goods, at the cost of the Charity.

40. *Charity not to relieve public funds.*—The funds or income of the Charity shall not be applied in relief of rates, taxes or other public funds.

41. *Alteration of Scheme.*—The Charity Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

42. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

43. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

FORM OF NOTICE

In the matter of the Charity called Jesus Hospital, Rothwell, at Rothwell, in the County of Northampton.

Notice is given that a vacancy exists for an almsman of this Charity.

Poor men of not less than sixty years of age and of good character residing in the County of Northampton are eligible for appointment. Preference will be given to applicants resident in the Urban District of Rothwell.

Application for appointment must be made in writing to
at _____ on or before the _____ 19 ____ . Every
applicant must state his name, address, age and occupation and must be prepared to produce sufficient testimonials and other evidence of his qualification for appointment and unless physically disabled to attend in person.

Note.—In special cases to be approved by the Charity Commissioners, men who do not possess the prescribed qualification as to residence may be appointed if otherwise qualified.

Signed

Clerk to the Governors.

SCHEDULE

Description	Tenant, person liable or persons in whose name invested	Gross yearly income
The following land and buildings situate in the Urban District of Rothwell in the County of Northampton:—		£ s. d.
Land with the buildings thereon known as Jesus Hospital and two separate dwellinghouses.	In hand	—
Land adjoining the grounds of Jesus Hospital with the dwellinghouse thereon.	L. Austin	32 15 0
Farm land	A. E. Austin	80 0 0
Land situate at Old (or Wold) in the said County of Northampton with the farmhouse buildings thereon.	Knight Brothers	312 0 0
Land situate at Thorpe Underwood in the County of Northampton with the farmhouse buildings thereon subject to and with the benefit of an ironstone mining lease and a wayleave lease in favour of Stewarts and Lloyds Limited.	J. J. Hayward	371 9 6
The right of presentation to the benefice of Rothwell with Orton on every third vacancy.	—	—
A perpetual yearly rentcharge charged upon or issuing out of land at Thorpe Underwood aforesaid.	—	13 4
Rent in respect of window	A. E. Sargeant	10 0
Wayleave... ..	Managers of Wold School	2 6
do.	East Midlands Electricity Board	3 3 2
do.	The Postmaster General	(in 1956) 1 0
Sporting rights	J. A. C. Thorneycroft	20 0 0

The following investments standing in the name of The Official Trustees of Charitable Funds :—

£6,051 3s. 6d. 3½ per cent. War Stock.

£221 7s. 3d. 3 per cent. Funding Stock, 1959–69.

£534 11s. 8d. 3 per cent. Savings Bonds, 1955–65.

£1,624 16s. 4d. 2½ per cent. Consolidated Stock.

£3,599 10s. 1d. British Transport 3 per cent. Guaranteed Stock, 1978–88.

£484 4s. 10d. cash on current account with C. Hoare and Company.

Note.—The above-mentioned land and rentcharge were vested in The Official Trustee of Charity Lands by the above-mentioned Scheme of the 23rd May 1865 and by an Order of the Charity Commissioners of the 20th November 1868.

Sealed by Order of the Board this 11th day of July 1958.

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